DAVID P. KREIDER, CIRCUIT JUDGE
Eighth Judicial Circuit Court of the State of Florida
Civil Division CA4
Hearing Room 302

Alachua Family and Civil Justice Center
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Gainesville, Florida 32601

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Introduction

Rule 1.010 of the Florida Rules of Civil Procedure and the Rules of Judicial Administration encourages the speedy, just and inexpensive determination of every action, and imposes on the trial Court the duty to monitor and manage the docket in order to achieve this goal. These policies and procedures are intended to efficiently and effectively apply the Florida Rules of Civil Procedure, which shall control if there is any conflict between the two.

Communications with the Judicial Office

1. Method of Communication: All communications to the judicial office must be submitted by e-mail to polkl@circuit8.org. The subject line must contain the case number, case name, and relevant matter (e.g., 2024-CA-000005 – Doe v. Doe - 2-Hour Hearing Requested.).

2. Ex parte Communications: All communications with the judicial office must comply with Canon 3 of the Code of Judicial Conduct, which prohibits a judge from initiating,

permitting, or considering ex parte communications and from considering other communications outside the presence of the parties concerning a pending or impending proceeding, unless authorized by law. All parties must be copied on any e-mail directed to the judicial office, unless an ex parte communication is authorized by law.

3. Unsolicited Communications: Unsolicited communications from non-parties will not be considered by the court. Parties may only contact the judicial office in accordance with these practices and procedures.

4. E-Filing Portal Contact Information: All attorneys and self-represented litigants must provide an e-mail address to receive signed orders electronically, unless excused. Fla. R. Gen. Prac. & Jud. Admin. 2.516. It is the responsibility of attorneys and self-represented litigants to update their contact information using Form 2.603 any time there is a change in the e-mail account registered for electronic service.

5. Response to Inquiries: The judicial assistant is not authorized to provide legal advice. If the judicial assistant is out of the office, the judicial assistant's out-of-office procedures will be included in the judicial assistant's automatic response.

Scheduling Procedures

1. Scheduling Hearings: The parties are to contact the judicial assistant by email at polkl@circuit8.org to request a hearing on any matter. The hearing request must include a copy of the motion that you are requesting a hearing on and the amount of time requested for the hearing.

2. Notice of Hearing: Once a hearing has been confirmed with the Court, the parties are to file the notice of hearing and email a copy of the notice to the judicial assistant.

3. Submission Deadlines: All hearing materials must be sent and received by the judicial assistant no later than 7 business days prior to the hearing in hard copy along with any case law or memorandums of law.

4. Continuance Procedure: The court will not consider any motion to continue without a client consent and good faith effort statement.

5. Cancelling Hearings: If the parties resolve a motion prior to the hearing, or any portion of the motion, Counsel shall immediately advise the Court of the resolution.

Motion Practice and Scheduling Hearings

1. Administrative Order 3.09, appendix A Standing Case Management Order effective 4/30/21 requires that **before** filing a motion, the moving party shall confer with counsel for the opposing party in a good faith effort to resolve the issues raised by the motion. The moving party shall file with the motion, a statement certifying that the moving counsel has conferred with opposing counsel and stating whether counsel agree on the resolution of the motion. A certification to the effect that opposing counsel was unavailable for a conference before filing a motion is insufficient to satisfy the parties' obligation to confer. The moving party retains the duty to contact opposing counsel expeditiously after filing and to supplement the motion promptly with a statement certifying whether or to what extent the parties have resolved the issue(s) presented in the motion. Counsel for the non-moving party is obligated to promptly reply to a 'meet-and-confer' request and to provide availability for such conference. If the interested parties agree to all or part of the relief sought in any motion, the caption of the motion shall include the word "unopposed," "agreed," or "stipulated" or otherwise succinctly inform the reader that, as to all or part of the requested relief, no opposition exists.

All motions do not require a hearing, and the Court may rule on motions without a hearing and without prior notice to counsel.

Setting Matters for Trial (Jury and Non-Jury)

When a case is at issue, any party may file a Motion to Set Matter for Trial. The parties may obtain a trial date without the requirement to appear for a hearing by filing a motion to set trial setting forth the agreed trial date and term of the trial and providing it by email to polkl@circuit8.org. The Court's available trial weeks are on the Court's web page. If counsel seek a trial date outside of the Fla. Jud. Time Standards, an explanation as to why it needs to be set beyond the time standards and a detailed discovery plan must be provided.

IF THE CASE SETTLES AFTER IT IS SET FOR TRIAL, THE PARTIES SHALL IMMEDIATELY NOTIFY THE COURT SO THAT THE TRIAL AND ALL PENDING HEARINGS MAY BE REMOVED FROM THE COURT'S CALENDAR.

Remote Hearing Procedures

1. All parties shall be familiar with and follow the procedures set forth in The Florida Bar Best Practices Guide for Remote Conferences.

2. Connecting to Hearing. The Court will be hosting the hearing and there is no cost to any participant. Participants will need a computer with a webcam and microphone (preferred) or a tablet with Internet access to the Zoom application. Participants can download the application and register for a free account at www.zoom.us. All parties should use the link to join the hearing prior to the start time. When linking into the meeting, each person appearing must enter their full name and relationship to the case; i.e. defense counsel, expert, plaintiff's counsel or defendant when prompted. Participants may be entered into a virtual waiting room, and they will be brought into the hearing when their case is called. Due to the number of hearings, please expect delays and remain in the hearing. If a participant is having technical issues, please email the Court's judicial assistant to advise of the issues. Please review and comply with the Zoom procedures which may be found at: https://circuit8.org/zoom-guidelines/

3. Attorneys and parties shall confer prior to the hearing to determine whether there are any stipulations as to the admissibility of evidence.

4. Decorum and Attire: Although the hearing is being conducted virtually, proper courtroom decorum should be maintained. Participants should be in a quiet setting and minimize any external distractions. Be aware of what is behind you and choose a solid neutral wall, if possible. Please dress like you are coming to the courthouse.

5. Camera Required: All parties appearing for a remote hearing shall have a camera which is turned on.

Proposed Orders Following a Hearing

The Court may request the lawyers prepare proposed orders pursuant to the Court's verbal recitations of rulings made during a hearing. Such proposed orders after a hearing are to be timely submitted to the Court as follows:

1. If a time is not set for submission of the proposed order, the order should be submitted within seven (7) days of the hearing.

2. Proposed orders should be limited to ten pages unless leave of Court for a longer order is obtained.

3. Proposed orders should not contain argument.

4. If there is an unrepresented party involved in the case not using e-Portal, the proposed Order must be submitted to the Court in writing and emailed in word format, with sufficient

copies for an original to be entered by the Court and a copy for each party not using e-Portal. Further, the party presenting the proposed Order, shall be responsible for providing addressed, stamped envelopes for parties not using the e-Portal;

5. If all parties before the Court are using e-Portal, the proposed Order may be emailed to the Court in Microsoft Word format; and

6. The proposed Order service list must contain e-filing addresses for opposing counsel/unrepresented party. If an unrepresented party does not receive e-filings, counsel must immediately mail or hand deliver to the Court an addressed, stamped envelope.

7. All proposed Orders presented following a hearing, whether submitted to the Court in writing or via e-mail as contemplated above, MUST INCLUDE A COVER LETTER INDICATING:

a. What the Order is for (*i.e.*, the case, the motion heard, including date and time, the title of the Order, etc.); and

b. That all opposing counsel/unrepresented parties have been provided with the same materials being provided to the Court, and whether the parties agree with the language of the proposed Order.

All counsel and unrepresented parties must be copied on the cover letter, including any proposed Order, at the same time provided to the Court. If counsel does not have an email address for an unrepresented party, counsel must mail, or hand deliver the proposed Order and letter to the Court consistent with the instructions above.

Proposed Order Without a Hearing:

1. Proposed Orders without a hearing may be submitted to the Court in Microsoft Word **with a cover letter**, which must be copied to all opposing counsel/unrepresented parties. A Courtesy copy of the motion, joint stipulation, etc. related to the proposed Order must be provided. The letter must state that opposing counsel/unrepresented party has been provided with the same materials being provided to the Court and whether (i) opposing counsel or the unrepresented party consents to the relief requested in the order and, if so, (ii) whether opposing counsel or the unrepresented party agrees with the language of the proposed Order. The service list on the Order must contain e-filing addresses for opposing counsel and unrepresented parties.

2. If counsel does not have an email address for an unrepresented party, counsel must mail or hand-deliver the proposed Order, cover letter and all attachments to the Court

consistent with the instructions above. If an unrepresented party does not receive e-filings, counsel must immediately mail or hand deliver to the Court an addressed, stamped envelope for that party.

3. All consent Orders shall include the word "Consent" or "Agreed" in the caption of the proposed Order.

Courtesy Copies of Case Law and Other Documents

1. Copies of motions and memoranda must be delivered to the Court at least seven business days before a scheduled hearing on the matter. Motions, pleadings, memoranda, and case law may be provided by e-mail as well as U.S. Mail or hand delivery. However, voluminous pleadings (more than 10 pages, including attachments) must be provided via hand-delivery, U.S. Mail, or other delivery service. Any binders containing case law shall be **received** by the Court **at least 7 business days prior to the hearing**.

2. The Court requires highlighted copies of all pertinent case law to be provided in hard copy. It is not necessary to provide copies of case law to the standards of review for run of the mill motions such as motion for summary judgment, motion to dismiss, and discovery motions.

3. The Court may cancel the hearing if the required materials are not received.

4. Case law emailed to the Court less than 7 days prior to the hearing will not be considered.

The Court encourages all parties to work together where possible to submit one copy of the supporting materials necessary for the Court's consideration.

Emergency and Other Urgent Matters

Any emergency motion must be emailed to the Judicial Assistant with the case number, case name and EMERGENCY in the reference line.

Exhibits for Evidentiary Proceedings

1. All Exhibits must be delivered to the Court at least seven business days before a scheduled hearing on the matter. Motions, pleadings, memoranda, exhibits and case law may be provided by e-mail as well as U.S. Mail or hand delivery. However, voluminous pleadings (more than 10 pages, including attachments) must be provided via hand-delivery, U.S. Mail, or other delivery service. Any binders containing case law shall be **received** by the Court **at least 7 business days prior to the hearing**.

2. The Court requires highlighted copies of all pertinent case law to be provided in hard copy. It is not necessary to provide copies of case law to the standards of review for run of the mill motions such as motion for summary judgment, motion to dismiss, and discovery motions.

3. The Court may cancel the hearing if the required materials are not received.

4. Case law emailed to the Court less than 7 days prior to the hearing will not be considered.

The Court encourages all parties to work together where possible to submit one copy of the supporting materials necessary for the Court's consideration.

Pretrial Procedures and Case Management Conferences

1. The case management conference order requires specific information needed by the Court to schedule the trial. Please ensure that all required information is included.

2. The case management statement must be filed no later than 15 working days prior to the case management conference.

3. The parties must confer to determine if they can agree to a trial date, the length of the trial and advise the Court of same at least 5 days prior to the case management conference.

4. Please ensure that you confirm your client's availability for trial suggestion prior to the submission of a case management statement and/or appearance at the case management conference.

Other Division Procedures: Motions for Rehearing and Motions for New Trial

These motions should first be e-filed with the Clerk of Court. The party filing the motion shall provide the Court with a copy for review by U.S. Mail, hand delivery or email **at the time the motion is filed**. Any motion over 20 pages should not be emailed but delivered by U.S. Mail or hand delivery. If a hearing is required, the Court will schedule a hearing with the parties.

Discovery Disputes

As with all motions filed in this Division (as set forth above), prior to filing a motion to compel discovery, the moving party shall confer in good faith with the non-moving party in an attempt to resolve the discovery dispute. If, for any reason, the moving party is unable to confer with counsel for the non-moving party, the motion should describe at least 3 attempts to confer by the moving party.

Motions to Continue

1. The Court will review Motions to Continue to determine good cause and rule upon the motion without a hearing. The failure to timely pursue discovery, take depositions, procure experts, and conduct mediation do not constitute good cause and any motion to continue alleging same will be denied without hearing.

2. The motion to continue must be accompanied by the Client's consent.

3. If a party represents that a motion to continue is unopposed, then all parties' consents to the continuance must be filed.

4. If the parties jointly agree to submit a motion to the Court without the need for a hearing, the moving party should forward to the Court the motion and a proposed agreed order.

5. Hearings will only be set on motions already filed with the Clerk which contain the required certification of good faith conference. All hearings must be coordinated with opposing counsel. The party requesting a hearing on any pending motion should contact the Judicial Assistant with all other parties on the line or by email at polkl@circuit8.org. **Dates provided for hearings are not held and may be given to other cases.** All counsel shall promptly respond to the moving party's request with proposed dates received from the Judicial Assistant to facilitate this process. **Hearing dates/times are not secured until confirmation is sent from the Court. Hearing times not timely noticed will be removed from the Court's calendar.**

6. Once a hearing time is set, no party may add or notice additional matters for that time without the express consent of all parties and the Court.

7. The parties shall not include the judicial assistant in any discussions about any substantive matter or disputes about whether a motion is appropriate. Emails to the judicial assistant should be limited to dates, times and amount of time needed for the hearing. Unprofessional communications to the judicial assistant will result in a referral to the local bench bar committee.

8. The Court's hearing schedule has very little, and sometimes no, time between hearings. Please arrive early and allow plenty of time for parking if appearing in person or for connecting to the hearing if appearing remotely. Failure to timely appear for a hearing may result in the motion being denied (if the moving party) or the motion being heard without you (if the non-moving party). Moreover, the Court will enforce the time limits set for each hearing. Any

matters not resolved during the scheduled hearing time will have to be re-scheduled or decided after an opportunity for written briefing.

Trial Technology

The Court allows parties to utilize technology in their trial presentations. Counsel is responsible for having any technology set-up and ready to use during the trial without causing unnecessary delay. Please contact the Court's Information Technology department at (352) 374-3655 to coordinate any technological issues in advance of the trial or hearing. Please ensure that any witnesses appearing remotely have access to the necessary technology, and know how to use the technology, and are familiar with the Florida Bar Best Practices Guide for Remote Conferences.

ADA Accommodations and Interpreter Requests:

1. Eighth Judicial Circuit of Florida provides ADA accommodations, such as sign language interpreters, assistive listening devices, and document formatting (Braille/large print), to ensure individuals with disabilities have access to court programs and services. Requests should be submitted using the ADA Request Form preferably seven days in advance.
2. **Request Process:** Complete the ADA Accommodation Request Form and submit it to the local ADA coordinator as far in advance as possible.
3. **Available Services:** Assistive listening devices, qualified interpreters (ASL or other), CART (real-time transcription), and qualified readers.
4. **Limitations:** The court cannot provide transportation to the courthouse, personal devices (wheelchairs, hearing aids), legal counsel, or official transcripts as an accommodation.
5. **Procedure Requests:** Requests involving case procedures, such as rescheduling, telephonic appearances, or remote video participation, must be made by written motion to the presiding judge, not via the ADA request form.
6. For more information, you can visit the Americans with Disabilities Act (ADA) Information page for the Eighth Judicial Circuit of Florida.